Bobcat Trail Homeowners Association, Inc.

Board of Directors Meeting Minutes

July 26, 2023

1. CALL TO ORDER:

President Michael San Antonio called the meeting to order at 3:01pm which was conducted at the Bobcat Trail Community Center and accessible via Zoom video Conference call.

2. STATEMENT OF QUORUM:

A quorum was declared with six (6) Directors present including, President Michael San Antonio, Vice President Catherine Little, Treasurer Stephen Kohl, Director James Callahan, Director Doug Knowles (Zoom), and Director Brent Tawes. Secretary Tammy Holmes was absent.
***Management present*:** Rafael Susara, LCAM of Advanced Management, Inc. (AMI) was also in attendance at the Center.

3. PROOF OF NOTICE:

President San Antonio confirmed that proper notice was provided no less than 48 hours in advance, in accordance with Florida Statute and the Association's Governing Documents.

4. READING/APPROVAL OF MINUTES (June 28, 2023):

A ***motion*** was made by Director Tawes and seconded by Vice President Little to approve the June 28, 2023 Board of Directors' Meeting Minutes with a slight correction. ***All were in favor and the motion carried unanimously.***

It was at this point where a ***motion*** *was made by President San Antonio and seconded by Vice President Little to add to the agenda under New Business a discussion focused on reinstating the maximum fine to $10,000 as stated in the Governing Documents.* ***All were in favor and the motion carried unanimously.***

5. REPORTS:

A. **AMI Management Report:**

Rafael Susara, LCAM with Advanced Management, Inc. (AMI) provided an Operational Summary report since the last Board of Directors' Meeting to include the number of broadcasted emails (2), violations (42), ARC requests (16), and delinquent accounts (40).

B. **Officers Reports:**

- ***President Report:*** It was reported that the recent community blood drive was a huge success with over 30 pints of blood collected. The next blood drive is tentatively scheduled for November 2, 2023 between 9am and 1pm.
- ***Treasury Report:*** It was reported that the total operating cash balance had reached $67,209 with total assets exceeding $93,170. Also reported was a recognized surplus of $47,923. A ***motion*** was made by Vice President Little and seconded by Director Tawes to approve the Treasurers' report. ***All were in favor and the motion carried unanimously.***

C. **Committee Reports:**

1. ***ACC:*** It was reported that ACC requests have decreased in recent weeks with only 16 received to include new roofs, house paintings, gutter installations, landscape improvements, and a new generator.
2. ***TES:*** Three requests for time extensions were received and approved by the committee. The committee reminded owners that when time extensions are granted, they are extended for 35 days.
3. ***Hearing Panel:*** Two Board imposed fines were approved by the committee. A new Chairperson for the committee still has to be appointed.

6. **NEW BUSINESS:**
   A. **Storm Preparedness:** It was announced that an Ad-Hoc Committee is being considered to help spearhead the efforts in formulizing a policy to direct owners in how to prepare for approaching storms.4

   B. **Maximum Fine of $10,000:** A brief history was shared where the Governing Documents allow for a maximum fine of $10,000, but previous Boards have been capping the maximum fine to only $1,010 in past years. Discussions took place to include the lack of compliance from some owners, the need for legal counsel's guidance, and the fine collection process.

7. **OLD BUSINESS:**
   A. **2014 Silver Palm Violation:** It was reported that the damaged lawn between the sidewalk and the road at this address had not yet been repaired, even after a Time Extension had been granted and has since expired. A ***motion*** was therefore made by President San Antonio and seconded by Director Tawes to approve the Association to address the issue and pass on the expense to the owner. ***All were in favor and the motion carried unanimously.***

8. **POTENTIAL FINES:**
   A. **2464 Silver Palm – Stained area on sidewalk and apron:**
   The owner was present and explained the situation to the Board that the area was of two different colors and staining them the same made the most sense aesthetically. A ***motion*** was made by Director Tawes and seconded by Treasurer Kohl to enforce the ACC guidelines to prohibit the painting of aprons. After further discussion, Director Tawes ***withdrew his motion*** to allow the ACC committee the opportunity to research solutions in restoring the aprons back to their original state. A motion was then made by President San Antonio and seconded by Vice President Little to table this issue until he ACC can determine the best course of action in resolving it. ***All were in favor and the motion carried unanimously.***
   B. **3443 Kentia Palm – Storm Shutters have been closed before June 1, 2023:**
   A ***motion*** was made by Vice President Little and seconded by Director Tawes to approve the fine of $100 and $10 per each day of continued non-compliance up to $1,010. In this specific case, the fine reached $190 before the shutters were removed. ***All were in favor and the motion carried unanimously.***
   C. **1742 Bobcat Trail – Storm Shutters have been closed before June 1, 2023:**
   A ***motion*** was made by Vice President Little and seconded by Director Tawes to approve the fine of $100 and $10 per each day of continued non-compliance up to $1,010. In this specific case, the fine reached $260 before the shutters were removed. ***All were in favor and the motion carried unanimously.***
   D. **3206 Lady Palm Way – Storm Shutters have been closed before June 1, 2023:**
   A ***motion*** was made by Vice President Little and seconded by Treasurer Kohl to approve the fine of $100 and $10 per each day of continued non-compliance up to $1,010. In this specific case, the fine reached $250 before the shutters were removed. ***All were in favor and the motion carried unanimously.***

9. **OWNERS COMMENTS**: *All owners present were afforded the opportunity to ask questions.*
   - Owner informed the Board that lawns are being destroyed by the use of bobcats in the community.
   - It was reported that a new handicap seat was installed at the pool but the old one is still there and needs to be discarded.
   - Owner expressed dissatisfaction with the fining of owners for hurricane shutters.
   - Owner reported several landscape shortfalls pertaining to weed control.

10. **NEXT MEETING DATE:** The next meeting is scheduled for August 23, 2023 at 3:00pm at the Community Center and via Zoom video conference call.

11. **ADJOURNMENT:**
   With there being no further business to discuss, a ***motion*** was made by Director Tawes and

seconded by Vice President Lirttle to adjourn the meeting at 3:51pm. ***All were in favor and the motion carried unanimously.***

Respectfully submitted for Tammy Holmes, Secretary, by

Rafael Susara
LCAM with Advanced Management, Inc. (AMI)